CHAPTER 25.

An Act to amend the Government of India Act, 1858.
[18th August 1911.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

Amendment of 21 & 22 Vict. c. 106.

1. In section eighteen of the Government of India Act, 1858, the words "or to his legal personal representative such gratuity" shall be inserted after the words "such compensation, superannuation, or retiring allowance" where they secondly occur, and the words "or to personal representatives of such persons" shall be inserted after the words "public service," and also at the end of the section.

Confirmation of past grant of gratuity.

2. Any grant to the legal personal representative of a deceased officer or servant on the establishment of the Secretary of State in Council made out of the revenues of India before the passing of this Act shall be deemed to have been lawfully made.

Short title.

3. This Act may be cited as the Government of India Act Amendment Act, 1911.

CHAPTER 26.

An Act to make provision in relation to the transfer to the Postmaster General of the plant, property, and assets, and of the staff of the National Telephone Company, Limited, and for the further improvement of Telephonic Communication. [18th August 1911.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

PART I.

FINANCIAL PROVISIONS.

Powers for discharge of telephone purchase money.

1.—(1) The Treasury may, for the purpose of providing for the payment of the telephone purchase money as defined by this Act,—

29 & 30 Vict. c. 39.

(*a*) notwithstanding anything in the Exchequer and Audit Departments Act, 1866, treat any sums paid to the Postmaster General by the National Telephone Company, Limited (herein-after referred to as the

Company), on account of sums paid in advance to the Company by subscribers in respect of services to be rendered during a future period, as sums to be applied in payment of the purchase money; and

(*b*) issue out of the Consolidated Fund or the growing produce thereof any sums which may be required for the payment of that part of the telephone purchase money which is payable in cash, so far as provision is not otherwise made for that payment; and

(*c*) issue to the Company, or to such persons as the Company may direct, such terminable annuities as may be required for the discharge of that part of the telephone purchase money which is not payable in cash.

(2) If so agreed between the Treasury and the Company, the Treasury may, instead of issuing terminable annuities for the discharge of that part of the telephone purchase money which is not payable in cash, issue to the Company or to such persons as the Company may direct, such amount of Exchequer bonds bearing interest at the rate of three per cent. per annum as may be agreed upon between the Treasury and the Company.

Any Exchequer bonds so issued shall be paid off by the Treasury at the rate of one hundred pounds sterling for every one hundred pounds of the bond, together with all arrears of interest, before the expiration of such period not exceeding twenty years, and at such times within that period, and in such amounts and manner, as may be fixed by the Treasury.

Any Exchequer bonds so issued shall, notwithstanding anything in section twenty-six of the Exchequer Bills and Bonds Act, 1866, be made out and issued with coupons for the interest becoming due thereon for a term not exceeding twenty years from the date thereof. 29 & 30 Vict. c. 25.

Grant for the purpose of the Telegraph Acts.

2. The Treasury may, with a view to the development of that part of the telegraphic system of the United Kingdom which is called the telephonic system, without prejudice to the exercise of any powers previously given for the like purpose, issue out of the Consolidated Fund or the growing produce thereof such sums, not exceeding in the whole the sum of four million pounds, as may be required by the Postmaster General for the purpose of developing the telephonic system aforesaid according to estimates approved by the Treasury.

Borrowing for purposes of issues out of Consolidated Fund.

3. The Treasury may, if they think fit, with a view to providing money for sums authorised under this Act to be issued from the Consolidated Fund for the purpose of the payment of the telephone purchase money, or for the purpose of the development of the telephonic system, or for repaying to that fund all or any part of the sums so issued, borrow by means of terminable annuities for a term not exceeding twenty years, and all sums so borrowed shall be paid into the Exchequer.

Charge on Consolidated Fund of terminable annuities and Exchequer bonds.

4. Any terminable annuities created under this Act for the purpose of providing money for sums authorised to be issued out of the Consolidated Fund, or for the purpose of the discharge of the telephone purchase money, and the principal of and interest on any Exchequer bonds issued for the purpose of the discharge of the telephone purchase money, shall be paid out of moneys provided by Parliament for the service of the Post Office, and, if those moneys are insufficient, shall be charged on and paid out of the Consolidated Fund of the United Kingdom or the growing produce thereof.

Audit.

5. The Postmaster General shall, within eight months after the end of every financial year in which money is issued or expended under this Act, cause to be made out an account, in the form required by the Treasury, showing the money expended and borrowed and the securities created under the Telegraph Act, 1892, the Telegraph (Money) Act, 1896, the Telegraph (Money) Act, 1898, the Telegraph Act, 1899, the Telegraph (Money) Act, 1904, the Telegraph (Money) Act, 1907, and this Act, and the account of expenditure under those Acts shall be audited and reported on by the Comptroller and Auditor General as an appropriation account in manner directed by the Exchequer and Audit Departments Act, 1866.

55 & 56 Vict. c. 59.
59 & 60 Vict. c. 40.
61 & 62 Vict. c. 33.
62 & 63 Vict. c. 38.
4 Edw. 7. c. 3.
7 Edw. 7. c. 6.
29 & 30 Vict. c. 39.

PART II.

RIGHTS OF COMPANY'S OFFICERS TO SUPERANNUATION ALLOWANCES.

Provisions as to superannuation of transferred officers.

6. In the application of the Superannuation Acts, 1834 to 1909, to a transferred officer who on his transfer is appointed to a pensionable office, or is appointed to such an office subsequently to his transfer, having since the date of his transfer served continuously in the civil service, the following modifications shall be made in favour of the officer:—

(1) Appointment with a certificate from the Civil Service Commissioners shall not be required, notwithstanding that the appointment is not held directly from the Crown:

(2) Continuous service with the Company shall be treated as service in the office to which an officer is first transferred for the purpose of calculating the period of ten years' service required as a condition for entitling a civil servant to a superannuation allowance under the Superannuation Acts, 1834 to 1909, and the period of five years' service required as a condition for entitling a civil servant to a gratuity under section two of the Superannuation Act, 1909:

9 Edw. 7. c. 10.

(3) The conditions mentioned in the foregoing paragraph shall not apply in the case of an officer who has served continuously in the Company's service from the fifteenth day of August nineteen hundred and four to the date of his transfer:

(4) The superannuation allowance which may be granted to an officer who would not be entitled to a superannuation allowance but for the foregoing provisions shall be calculated at the same rate for each completed year of service in a pensionable office as that prescribed under the Superannuation Acts, 1834 to 1909, for civil servants who have entered the service after the passing of the Superannuation Act, 1909, and completed ten years' service in a pensionable office:

(5) If the officer is not a contributor to the Company's pension fund, or has not assigned to the Postmaster General his share in that fund, his continuous service with the Company prior to the date of his transfer up to a period not exceeding two years shall be treated as service in the office to which he is first transferred:

(6) In the case of a contributor to the Company's pension fund, his service during the period of contribution and, in the case of an original member of the fund, the whole of his continuous service with the Company, shall, if he assigns to the Postmaster General his share of the fund, be treated as service in the office to which he is first transferred:

(7) In the case of an original member of the Company's pension fund to whom a superannuation allowance is granted on or after his attaining the age of sixty years, the amount of that allowance, together with the annual value, actuarily determined, of any additional allowance granted to him under subsection (2) of section one of the Superannuation Act, 1909, shall not be less than two-thirds of the amount which he was receiving as salary on the first day of January eighteen hundred and ninety-six, together with the amount of any additional pension purchased under the terms of the deed of trust creating the Company's pension fund by means of contributions made to the fund in respect of increments of salary accruing during the years eighteen hundred and ninety-six to nineteen hundred and eleven, inclusive.

For the purposes of this section—

"A contributor to the Company's pension fund" means an officer who has contributed continuously to that fund up to the date of his transfer;

Service with the Company includes service with any other telephone company which has been amalgamated with or absorbed by the Company, or with any authority whose telephone undertaking or business has been taken over by the Company;

An officer shall be deemed to assign to the Postmaster General his share of the Company's pension fund if he assigns to the Postmaster General any share of the fund to which he may be entitled on the fund being apportioned amongst the members thereof or otherwise wound up, or, in the case of an officer who is appointed to a pensionable office after the fund is so apportioned or otherwise wound up and has not previously assigned his share, if he pays over to the Postmaster General the amount of his share, together with compound interest at the rate of three per cent. per annum, calculated from the date of the receipt of his share.

Provision as to gratuities to transferred officers. 50 & 51 Vict. c. 67.

7. Subject to the provisions of this Act, in the application of section four of the Superannuation Act, 1887, to a transferred officer who is not on his transfer or subsequently appointed to a pensionable office in the Civil Service, continuous service with the Company shall be treated as service in the office to which the officer is first transferred for the purpose of calculating the qualifying periods mentioned in that section.

PART III.

GENERAL.

Temporary provisions as to transfer.

8. For the purpose of enabling the company to prepare and conduct their claim for purchase money under the provisions of the purchase agreements, and to enter into agreements with the Postmaster General, and to discharge the liabilities of the company, and generally to carry on the business of the company, and to wind up their affairs and dissolve the company, the company may, after the thirty-first day of December nineteen hundred and eleven, temporarily retain for their own use the services of such officers as they may select, to such reasonable number, for such time, and on such conditions as may be approved by the Postmaster General; but the officers so temporarily retained shall be deemed nevertheless for the purposes of the provisions of this Act in relation to the company's officers to have become officers of the Postmaster General as from the said thirty-first day of December nineteen hundred and eleven.

Interpretation.

9. In this Act, unless the context otherwise requires,—

The expression " the telephone purchase agreements " means certain indentures dated respectively the second day of February and the eighth day of August nineteen hundred and five and respectively made between the Right Honourable Edward George Villiers Stanley, C.B., commonly called Lord Stanley, His late Majesty's then Postmaster General, on behalf of His late Majesty, of the one part, and the National Telephone Company, Limited, of the other part ;

The expression "the telephone purchase money" means such sums as may be payable to the company by virtue of any award or awards of the Railway and Canal Commission in respect of the purchase of the plant, property, and assets of the company which the Postmaster General has agreed to purchase or has power to purchase under the purchase agreements together with interest from the thirty-first day of December nineteen hundred and eleven at the rate of three per cent. per annum on any amount thereof which is not discharged;

The expression "office" includes any place, situation, or employment; and the expression "officer" shall be construed accordingly;

The expression "transferred officer" means any officer of the Company who is employed in the Civil Service of the State on or in consequence of the carrying into effect of the telephone purchase agreements, and the expressions "transfer" and "transferred" as respects an officer shall be construed accordingly;

The expression "pensionable office" means any office service in which is service qualifying the officer for a superannuation allowance under the Superannuation Acts, 1834 to 1909;

The expression "the Company's pension fund" means the pension fund established under the deed of trust creating a pension fund for the employees of the National Telephone Company, Limited, dated the thirtieth day of July eighteen hundred and ninety-six; and the expression "original member of the fund" means a person who is entitled under paragraph (*a*) of article two of the said deed of trust to a retiring pension at sixty-five years of age, equal to two-thirds of his salary as on the first day of January eighteen hundred and ninety-six.

10.—(1) This Act may be cited as the Telephone Transfer Act, 1911. **Short title and construction.**

(2) This Act may be cited with the Telegraph Acts, 1863 to 1909, and, so far as it relates to employees of the Company, shall be read as one with the Superannuation Acts, 1834 to 1909.

CHAPTER 27.

An Act to consolidate, amend, and extend certain enactments relating to Animals and to Knackers; and to make further provision with respect thereto.

[18th August 1911.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows: